

ROYAL DOCKS SCHOOL OF BUSINESS AND LAW

Coursework Assessment Details and Instructions

Module Code: LA6070 2024-25	Module Title: Mental Wealth – Professional Standards and Ethics [20 credits]
Percentage contribution to overall Module Mark: 100%	
Word Count: 4,000 words, which DOES NOT include the bibliography, but DOES include in-text references. <u>This is a strict word limit, and anything written beyond this will not be marked.</u>	
You must complete both Task 1 (case studies) and Task 2 (Port Folio and Reflection)	
DEADLINE DATE: To be submitted to TURNITIN any time before but NO LATER than <u>Wednesday 8th January 2025 at 4pm</u> <i>(NO hard copy submission is required – just through Turnitin only)</i> PLEASE ENSURE YOU TYPE YOUR STUDENT ID NUMBER AT THE TOP OF THE FIRST PAGE OF YOUR COURSEWORK – <u>NOT</u> YOUR NAME	
** Turnitin Information: Submit within website for the module on MOODLE	

PLEASE NOTE:

- Students are required to submit an electronic copy of their coursework to Turnitin which is located within the website for the module on Moodle.
- **Students are required to keep for their records a copy of the first page only of the Turnitin digital receipt.** The digital receipt is automatically sent to your mail inbox in the corresponding section for the module on Moodle.
- NO hard copy of coursework is required or permitted.

WARNING - PLAGIARISM AND COLLUSION:

You are reminded that it is a breach of University Assessment regulations to copy or use another person's work without proper acknowledgement. It is also a breach of regulations for two or more students to present the same or substantially similar piece of work. Any student who is found to be in breach of assessment regulations will be subject to an appropriate penalty (ranging from failure of the module to expulsion from the University). A breach of assessment regulations cannot be excused by ignorance or external pressures. No part of your work, except where clearly quoted and referenced (i.e. correct use of quotation marks and footnotes etc.), may be copied from material belonging to any other person. You should employ the **OSCOLA referencing system** throughout your work.

For further information about plagiarism and collusion, please consult your Programme Handbook. For information on referencing, please consult the Study Skills Handbook. For guidance on plagiarism and collusion from online sources, check the originality report of your Turnitin submission.

Assessment Criteria

This piece of coursework will be assessed by reference to the following criteria:

Case studies

- Ability to identify and analyse breaches of professional standards and ethical requirements.
- Ability to apply the facts of the case studies to the relevant professional standards and ethical requirements to demonstrate the breaches.
- Ability to provide clear advice, supported by relevant research and authorities, as to the likely sanctions for the breaches.
- Clear, professional writing style with appropriate referencing.

Self-Reflection

- Careful reflection as to the knowledge and/or skills you, personally, have gained by engaging with this module.
- Ability to demonstrate engagement with the content of the module as a whole.
- Ability to explain how you plan to develop a considered, thoughtful approach to ethical issues in your future profession or career.

Module Learning Outcomes

This coursework assessment is designed to allow students to show how the following learning outcomes have been achieved:

Knowledge

1. Demonstrate knowledge as to the philosophical and jurisprudential origins of ethics, legal ethics, and justice and understand the differences and relationship between 'ethics', 'morality' and 'law'.
2. Apply knowledge of the legal ethics codes to understand lawyers' duties to the Court, their clients and the wider public.
3. Evaluate the context in which the legal profession's ethics codes operate and demonstrate a wider awareness of and commitment to legal values and the moral context of the law.

Subject-based practical skills

4. Assess the practical applicability of the legal ethics codes to given scenarios.

Skills for life and work (general skills)

5. Plan, research and learn both independently, and as part of a small team (group work).

Thinking skills

6. Develop the ability to analyse complex legal issues, set against the background of the political, social, economic or cultural contexts in which they may arise.

Skills for Life and Work (General Skills)

7. Plan, research and learn both independently, and as part of a small team (group work). (DP) (COI)

PLEASE NOTE: Assessments MUST be properly referenced using the OSCOLA style and MUST include a bibliography. Adequacy of referencing will form part of the marking criteria.

LA6070: Mental Wealth – Professional Standards and Ethics

YOU MUST COMPLETE BOTH TASKS

The overall word count for both tasks is a maximum of 4000 words. Please include a word count for each task.

Task 1 – Case Studies – Answer BOTH scenarios in Task 1

Weighting - 50% of total module mark (Suggested word count – 1500 words maximum)

Advise the Solicitor in each scenario as to possible breaches of professional standards and ethical requirements that may have been committed, as well as the likely consequences, if any, for the Solicitor.

Do not discuss potential criminal or civil liability and be sure to address both scenarios.

Scenario 1

A solicitor filed a defence with the County Court which he ought to have known was factually incorrect and misleading. In the defence he incorrectly stated that his former lay client was liable for sums claimed by counsel. When he was notified that his defence was factually incorrect and misleading, he failed to take any action and the matter proceeded to a summary judgement hearing.

Scenario 2

Over a period of several years, a solicitor failed to disclose she owned one or more properties during a time she was bidding for, and eventually accepted, social housing. She was convicted of fraud and at her sentencing hearing she expressed sincere remorse for her actions and explained that, during that time, she had been struggling with her mental health due to the death of her child and stress at work.

Task 2: Answer BOTH parts of Task 2

Portfolio consisting of the following tasks-

- Career Development Pathway, 'Apply your learning assessment'
 - For this assessment students will create your **Graduate Career Development Plan (400 words, weighting - 10% of total module mark)**
 - To support them students will complete their **Level 6 Career Development Pathway**, an online course which they can access by logging into the Career Zone.
 - Once they have completed the Pathway, **students should then use 400 words to complete their Graduate Career Development Plan.**
 - The template for the Plan can be **downloaded from Moodle.**
 - Once students have completed their Plan, they **can submit it to Turnitin.**
- Self-Reflection, 1,800 words,
 - **1,800 words - (Weighting - 40% of total module mark)**
 - This task requires you to reflect on your learning and engagement with this module.

With reference to the ten topics discussed in your weekly lectures and seminars, please reflect on what you have learned from this module. Your reflections should demonstrate your engagement with this module as well as an appropriate understanding and appreciation of the professional standards and ethics required by the respective professional bodies. Explain how you will use what you have learned from this module to develop a considered approach to ethical issues in your profession or career.

Please be sure to reflect on your own personal learning rather than summarising information that anyone else may have learned. Your reflections should be unique to you and contain a forward-looking element demonstrating how you will consider or use what you have learned in your future profession.

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